ISSUE 01 · OCTOBER 2026

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# THICKER THAN MUD.

**A kavatender’s guide to organizing your bar: your rights, the tactics that win, and who’s got your back.**

# THE BAR RUNS ON US.

Kava bars sell community, a “second home.” We build it: brewing mud before open, straining till our forearms burn, closing alone at 2 a.m., smiling for tips.

**ONE OF US COMPLAINING IS A PROBLEM. ALL OF US TOGETHER IS A UNION.**

SOUND FAMILIAR? CHECK WHAT’S TRUE AT YOUR BAR:

- [ ] Brewing, prepping or cleaning off the clock
- [ ] A tip pool that a manager or owner dips into
- [ ] Paid on a 1099 like a contractor, scheduled and trained like an employee
- [ ] Closing alone with impaired or hostile customers
- [ ] Schedules posted last minute; hours cut when you speak up
- [ ] “We’re a family here,” said right before bad news

IN FLORIDA, SINCE SEPT 30, 2026

Minimum wage: **$15.00/hr.** Tipped: **$11.98 + tips.** If tips don't get you to $15 every hour, the bar owes the gap.

# KNOW YOUR RIGHTS.

Section 7 of the National Labor Relations Act protects workers who act **together** to improve pay and conditions. No union needed yet.

YOU CAN LEGALLY:

→ Compare pay and tips with coworkers

→ Talk union on breaks and off the clock

→ Sign a union card

→ Bring a group complaint or petition to the boss

→ Post about conditions online, with coworkers

THE ONLY TIPS THE BOSS CAN'T TAKE:

- **T** **Threaten** firing, cut hours, or closing the bar
- **I** **Interrogate** you about who's involved
- **P** **Promise** raises or perks to drop the union
- **S** **Spy** on your meetings or chats, or act like it

**Shift leads:** if they can hire, fire or discipline, the law likely counts them as management. Keep them out early.

**Small bars:** the NLRB generally covers retail and restaurants grossing $500k+ a year. A single small shop may fall below. Ask an organizer.

**Retaliated against?** You have 6 months to file a charge. Log dates, names, texts, screenshots.

# FROM SHELL TO CONTRACT.

01 **Talk.** Quietly, one-on-one, with coworkers you trust. Listen more than you pitch.

02 **Build a committee.** 3–5 people others respect, covering openers, closers and weekends.

03 **Map the bar.** Who works when, who's close to whom, who people actually listen to.

04 **Pick the fight.** The issue nearly everyone feels: off-clock brewing, tips, safety at close.

05 **Get backup.** Contact EWOC or a union (see contacts at the back) before anything goes public.

06 **Sign cards.** Aim for a supermajority, 70% or more, while the boss still doesn't know.

07 **Go public.** Ask the owner to recognize your union, or file with the NLRB. Filing takes 30% on cards; winning takes a majority of votes cast.

08 **Bargain.** A written contract is where raises, fair tip rules and safety get locked in.

**CARDS AREN'T VOTES. KEEP TALKING UNTIL THE BALLOTS ARE COUNTED.**

# TACTICS THAT WIN.

THE ONE-ON-ONE IS EVERYTHING. RUN IT A-E-I-O-U:

| | |
|---|---|
| **Agitate** | What's wrong here? Let them talk. |
| **Educate** | Who decides? Not us, alone. |
| **Inoculate** | Here's what the boss will say. |
| **Organize** | Will you come to the next meeting? |
| **Unionize** | Will you sign a card today? |

**Organize the whole bar, not just your friends.** Every shift, brewers and barbacks too. A union of only the closing crew is a clique, and the boss will treat it like one.

**Build a cushion.** Support sags once the boss pushes back. Don't go public on a bare majority.

**Escalate in steps.** Petition, then deliver it together, then a pin day, then bigger. Every action tests your numbers and grows them.

**Bring in the regulars.** Kava bars live on community. Regulars who sign a support letter or wear your pin are leverage an owner can't shrug off.

**Write it all down.** Keep a private, shared log of every violation: date, time, who, what.

# THE BOSS'S PLAYBOOK.

NAME EVERY MOVE BEFORE THEY MAKE IT.

**"We're a family."** Families don't cut your hours for asking questions.

**The surprise raise.** At a Kentucky distillery, raises and perks landed right before workers voted the union down. The NLRB ruled the company broke the law.

**"Got a minute? Just us."** Keep it short. You never have to say where you stand.

**"We'll have to close."** Threatening closure over a union is illegal. Write it down, word for word.

**Divide and conquer.** Best shifts for the loyal, openers against closers. Stay one crew.

SECURITY CULTURE

- Personal phones only. Never bar Wi-Fi or the staff group chat.
- Signal, with disappearing messages on.
- Meet off-site, never at the bar.
- Nobody who can hire, fire or discipline.
- Write like the owner will read it: facts only.

# IT'S BEEN DONE.

HOUSE OF KAVA · BROOKLYN

The borough's first kava bar. Workers organized over pay, scheduling and boundaries; nearly all of them struck, and about 400 people signed a support letter. The owner held out, so the crew kept its union and partnered with another café.

ATTABOY · NEW YORK · 2026

Cocktail bar staff built their own independent union, Attaboy Local 134, won their vote 13–8, and headed into first-contract bargaining.

DEATH & CO · NEW YORK

All 17 workers signed cards with help from Workers United, and the drive still fell short. Cards are the start line, not the finish.

# THE LAW · OCT 2026

The NLRB has had a working Board since January. In August the Senate confirmed a third Republican member, so worker-friendly rules from 2022–23 may be reversed.

**Cemex** lets the Board order a law-breaking boss to bargain. One appeals court rejected it in March; another upheld it in April. Don’t build your plan on it.

Your Section 7 rights are in the statute itself. Regional offices still run elections and take charges.

# WHO’S GOT YOUR BACK.

**EWOC** · Free training and a volunteer organizer matched to your bar. Start here.

**workerorganizing.org**

**Workers United** · The SEIU union behind Starbucks Workers United. Organizes cafés and bars.

**workersunited.org**

**UNITE HERE** · The hospitality union: food service, hotels, bars.

**unitehere.org**

**Labor Notes** · Organizer trainings, guides and a big yearly conference.

**labornotes.org**

**NLRB** · File a charge or an election petition.

**nlrb.gov · 1-844-762-6572**

**US DOL Wage & Hour** · Stolen tips, off-clock work, unpaid wages.

**dol.gov/agencies/whd · 1-866-487-9243**

# WRITE IT DOWN.

Keep a private, shared log of every violation.

| DATE | TIME | WHO | WHAT HAPPENED |
|---|---|---|---|
| | | | |
| | | | |
| | | | |
| | | | |
| | | | |

Our organizer: _____

Next meeting: _____

# COPY IT.
# FOLD IT.
# PASS IT ON.

**Solidarity is thicker than mud.**



Not legal advice. Laws change; check with an organizer. Facts as of Oct 2026.